



File No.: EXP202207881

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 14, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ODRIA COSTAS INTERNACIONAL, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202207881

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection (AEPD) on 06/16/2022. The complaint is directed against ODRIA COSTAS INTERNACIONAL, S.L. with NIF B30905756 (hereinafter, the respondent or the REAL ESTATE AGENCY).

The reason for the complaint is the publication of images of his minor daughters on the real estate portal <https://www.rainbowpropertyservices.es/>. The image is visible in the photographs of his habitual residence that the respondent captured and subsequently published on the aforementioned real estate portal.

The complainant states that the REAL ESTATE AGENCY requested him, on behalf of the owner, to access what is his habitual residence since the date of the lease in 2010, in order to check the condition of the property. That days after the visit, he discovered that "the photos of our habitual residence were published on the website of the respondents and on other real estate portals of the network, without our consent." and that "in several of the photographs published on the internet without our consent, the images of our minor daughters appear, perfectly identifiable."

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The complaint also concerns the alleged non-compliance of the respondent's website with personal data protection regulations and the Law on Information Society Services, as it states that it does not identify the owner of the portal, does not inform about the exercise of rights, and there is no information about the cookie policy of the website.

Attached to the complaint are the following documents:

- Three photographs of the property that were published on the respondent's website. Two of them capture the image of the kitchen and allow seeing, hanging over the refrigerator door, four photos of young girls. The third photograph captures the image of a bedroom and on a piece of furniture several portraits of the minors.
- An email thread exchanged between B.B.B., "****POSITION.1" of the respondent real estate agency, from the email address ***EMAIL.1, and C.C.C., ***EMAIL.2. In all the emails, the subject is "Property Inspection" and all are dated 05/18/2022.

The first email is sent by the respondent to C.C.C. at 12:00 on 05/18/2022: "Can we do the inspection this Friday around 4:30 pm? I look forward to hearing from you."

At 15:21, ***EMAIL.2 responds: "Good afternoon, This week is impossible. We are not home all day. It would have to be the week of May 23, when we do not work in the afternoon. And if not, it would be until the week of June 6."

At 15:42, <***EMAIL.1> responds: "Good afternoon C.C.C., Thank you for your email. Is Monday at

5:30 pm at the property okay for you?"

At 17:17, ***EMAIL.2 writes: "Agreed. Monday at 5:30 pm."

On 06/07/2022, the aforementioned emails were sent from ***EMAIL.2 to the complainant's email address, ***EMAIL.3.

- A screenshot of the "Privacy Policy" in which it is observed that in the "Responsible" section, no information is provided.

SECOND: Upon receiving the complaint at the AEPD, in order to verify the publication on the respondent's website of the images of the complainant's property, screenshots were obtained on 07/14/2022 from ***URL.1.

The images thus obtained coincide with the photographs that the complainant provided to the AEPD attached to his complaint. Additionally, a fourth photograph was obtained, not provided by the complainant, showing an overall image of the children's bedroom in which the piece of furniture with several portraits of the minors also appears.

Screenshots were obtained from the respondent's website regarding the "Cookie Policy," the information about the identity of the data controller - "Odria Costas Internacional, S.L." - and its contact details, a

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email address -***EMAIL.4–, a postal address and two phone numbers -

PHONE.1-PHONE.2, ***ADDRESS.1-

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 15/07/2022, the aforementioned complaint and its attached documentation were forwarded to the REAL ESTATE AGENCY for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was notified electronically, in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made available to the complained party on 15/07/2022, and the notification was accepted on 18/07/2022, as evidenced by the document issued by the Support Service of the Electronic Notification Service and Enabled Electronic Address of the National Mint and Stamp Factory (FNMT) that is part of the file.

No response has been received to the forwarding letter.

FOURTH: On 16/09/2022, in accordance with Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Applicable provisions

The GDPR addresses in its Article 5 the principles governing the processing of personal data, which states:

“1. Personal data shall be:

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a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency');

b) [...]

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

[...]

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability').”

III

Infringement of the principle of minimization

1. The image of a natural person is a piece of personal data. Article 4.1 of the GDPR defines personal data as “any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;”

Recital 26 of the GDPR clarifies that “[...] To determine whether a natural person is identifiable, all means reasonably likely to be used by the data controller or any other person to identify the natural person, directly or indirectly, must be taken into account. To determine whether there is a reasonable likelihood that means will be used to identify a natural person, all objective factors must be considered, such as the costs and time necessary for identification, taking into account both the technology available at the time of processing and technological developments. [...]”

Article 4.2 of the GDPR defines processing as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction.”

All processing of personal data must respect the principles that govern it, including, and as relevant here, the principle of minimization, according to which only data that is necessary (“limited to what is necessary”) in relation to the purposes of the processing will be processed (Article 5.1.c GDPR).

Recital 39 of the GDPR specifies that “Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means.” (The emphasis is ours)

2. The documentation in the file provides clear indications that the complained party violated Article 5.1.c) of the GDPR.

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The collection and subsequent dissemination of images of the claimant's daughters constitutes an unnecessary processing of personal data.

In addition to the above, the responding party has additional information beyond the image of the minors, such as their two surnames, as it knows the identity of their parents: the name and two surnames of each of them. This is confirmed by the fact that, at least the father and claimant, is the tenant of the property, and, regarding the mother, through the messages exchanged with the “***PUESTO.1” of the REAL ESTATE AGENCY in order to arrange an appointment to visit the

property, it is verified that she knew her name and two surnames since both are linked to her email address.

The photographs that the claimant submitted on 06/16/2022 attached to his claim - three photographs of his property obtained from the responding party's website in which the image of the minor daughters is visible - are the same ones that were obtained almost a month later, on 07/14/2022, by the Inspection Subdirector of this Agency from that website (www.rainbowpropertyservices.es).

Thus, there is documentary evidence that during a visit to the claimant's home that the responding party made at the end of May 2022, it photographed several areas of his home and captured the image of his daughters through the photographs of the girls that were distributed throughout the house. The emails exchanged in May 2022 between the responding party and C.C.C. - all indications suggest that she is the mother of the minors and partner of the claimant - in which the subject of the communications is "Property Inspection," confirm the real estate agency's visit to the family home.

The responding party, when proceeding to photograph the areas of the claimant's home and family, did not take any measures to prevent the image of the girls, which was visible in the photographs distributed throughout the family home, from being captured. Furthermore, after obtaining the photographs and before proceeding to publish them on the real estate portal, it also did not take any measures to remove the image of the girls captured improperly or, at the very least, to prevent their identification.

The conduct of the responding party that is under analysis involved the processing of the image of the claimant's daughters that, in no case, was necessary to fulfill the purpose that their visit to the home might have had, whether this purpose was to inform the property owner about the condition of the property, to offer graphic information of a property whose sale was to be advertised on its website, or both.

3. Article 5.2. of the GDPR establishes the principle of proactive responsibility according to which the data controller shall be responsible for compliance with the provisions of paragraph 1 - for what is relevant here, the principle of minimization of Article 5.1.c) of the GDPR - and capable of demonstrating such compliance. The principle of proactivity transfers to the data controller the obligation not only to comply with the regulations but also to be able to demonstrate such compliance.

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Opinion 3/2010, from the Article 29 Working Party (WP29) - WP 173 - issued during the validity of Directive 95/46/EC, which has been repealed by the GDPR, but whose reflections are applicable today, states that the "essence" of proactive accountability is the obligation of the data controller to implement measures that, under normal circumstances, ensure that data protection standards are met in the context of processing operations and to have available documents that demonstrate to data subjects and supervisory authorities what measures have been adopted to achieve compliance with data protection standards.

Article 5.2 is developed in Article 24 of the GDPR, which obliges the controller to adopt appropriate technical and organizational measures "to ensure and be able to demonstrate" that processing is in compliance with the GDPR. The provision states:

"Responsibility of the data controller"

"1. Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary.

2. Where appropriate in relation to the processing activities, the measures referred to in paragraph 1 shall include the implementation, by the data controller, of appropriate data protection policies.

3. Adherence to approved codes of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as elements to demonstrate compliance with the

obligations of the data controller.” (The emphasis is ours)

In turn, Article 25 of the GDPR, “Data protection by design and by default,” refers to the technical and organizational measures that the data controller must adopt and provides:

“1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, the extent of their processing, the duration of their storage, and their accessibility. Such measures shall ensure in particular that, by default, personal data are not accessible, without the intervention of the data subject, to an indeterminate number of natural persons.

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3. An approved certification mechanism under Article 42 may be used as a means to demonstrate compliance with the obligations established in paragraphs 1 and 2 of this article.” (The underlining is ours)

In the factual scenario presented, the principle of data minimization required the responding party to have adopted organizational measures to prevent the capturing of images of minors while photographing the rooms of the residence. The image was included in numerous portraits of the girls displayed in the home. The organizational measures that could have been adopted to ensure compliance with this principle were numerous: from directing the camera in a way that would prevent capturing the images of the girls to requesting the parents to remove the portraits for the necessary time to photograph the residence.

And, having not respected the principle of minimization when obtaining the photos of the residence, the responding party was obliged in any case to comply with the aforementioned principle when using the photographs that included the image of the minors improperly captured, by removing or pixelating it before publishing the photos on websites and before providing them by any other means to third parties, including the property owner.

The responding party incurred a serious lack of diligence by failing to comply with the legal obligation imposed by Article 5.1.c) of the GDPR, a failure that occurred during the course of its business activity. As noted by the SAN of 17/10/2007 (Rec. 63/2006) “[...] the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, [...]”. (The underlining is ours)

4. The conduct of the REAL ESTATE AGENCY, manifested in the capturing of images of the residence that constitutes the home of the claimant and his family without having adopted the appropriate organizational measures to avoid capturing and, in any case, to avoid subsequently disseminating the image of his daughters, could constitute a violation of the principle of data minimization of personal data provided for in Article 5.1.c) of the GDPR. This violation is classified under Article 83.5 of the GDPR, which establishes:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
b) [...]"

For the purposes of determining the statute of limitations for the alleged violation of Article 5.1.c) of the GDPR for which the REAL ESTATE AGENCY is held responsible, we must refer to what is provided in Article 72.1 of the LOPDGDD, "Very serious violations," which states:

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"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious violations and shall be subject to a three-year statute of limitations for substantial breaches of the articles mentioned therein, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

[...]"

IV

Sanction that could be imposed

The corrective powers attributed to the AEPD as the supervisory authority are outlined in Article 58.2 of the GDPR, subsections a) to j). Among them, the provision includes the authority to impose an administrative fine in accordance with Article 83 of the GDPR (Article 58.2.i). It also includes the authority to "order the rectification or deletion of personal data or the limitation of processing in accordance with Articles 16, 17, and 18 and the notification of such measures to the recipients to whom personal data have been communicated in accordance with Article 17, subsection 2, and Article 19" (Article 58.2.g) and the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe (Article 58.2.d). Furthermore, Article 83.2 of the GDPR warns that administrative fines shall be imposed "as an additional or substitute measure for the actions contemplated in Article 58, subsection 2, letters a) to h) and j)."

In the present case, without prejudice to the outcome of the investigation, an administrative fine could be imposed on the REAL ESTATE AGENCY for the alleged violation of Article 5.1.c) of the GDPR, in accordance with Article 58.2.i) of the GDPR.

Article 83 of the GDPR, "General conditions for the imposition of administrative fines," states in its subsection 1 that the supervisory authority shall ensure that the imposition of fines for the violations of this Regulation indicated in subsections 4, 5, and 6 complies in each individual case with the principles of effectiveness, proportionality, and deterrence.

The principle of proportionality entails a correlation between the violation and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. Article 83.2 of the GDPR determines the technique to be followed to achieve that adequacy between the sanction and the violation committed and provides a list of criteria or factors that will be taken into account to calibrate the sanction. Subsection 2 of Article 83 of the GDPR establishes:

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the actions contemplated in Article 58, subsection 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

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a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or

purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, particularly whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factors applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having a data protection officer when not mandatory.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

The following factors reflecting a greater unlawfulness of the conduct and/or culpability of the allegedly infringing entity are noted:

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- From Article 83.2.a): the “seriousness” of the infringement “taking into account the nature, scope or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered.”

The Guidelines 4/2022 of the European Data Protection Board (EDPB) for the calculation of administrative fines under the GDPR, approved for public consultation on 12/05/2022, indicate that the “purpose of the processing” will lead the supervisory authority to attribute greater weight to the seriousness of the infringement. Thus, they state that “The supervisory authority may also consider whether the purpose falls within the so-called core activities of the data controller. The more central the processing is to the core activities of the controller or processor, the more serious the irregularities in this processing will be. The supervisory authority may give more weight to this factor under these circumstances.”

Regarding the seriousness of the infringement derived from the level of damage suffered and the

extent to which the conduct may affect individual rights and freedoms, the EDPB states that “The reference to the 'level' of damage suffered, therefore, aims to draw the attention of the supervisory authorities to the damage suffered, or that is likely to have been suffered, as another separate parameter in relation to the number of affected parties involved. [...]. According to Recital 75 of the GDPR, the level of damage suffered refers to physical, material, or immaterial damage. The assessment of damage, in any case, will be limited to what is functionally necessary to achieve a correct evaluation of the level of seriousness of the infringement as indicated in the following section 61, without overlapping with the actions of the judicial authorities responsible for determining the different forms of individual damage.”

In the present case, we consider that the infringement attributed to the respondent is serious since the purpose of the processing falls within the core activities of their company, the offering of real estate resulting from their intermediation in sales and rentals. On the other hand, the damage caused is relevant and significant as it affects the image of minors.

- Circumstance of Article 83.2.b) of the GDPR: “the intentionality or negligence of the infringement.”

It should be noted at the outset that the principle of culpability governs our sanctioning law, which prevents the imposition of sanctions based on the objective responsibility of the alleged infringer. The presence of the element of culpability in a broad sense, as a condition for the emergence of sanctioning responsibility, has been recognized by the Constitutional Court, among others, in its ruling STC 76/1999, in which it states that administrative sanctions share the same nature as criminal ones as they are one of the manifestations of the State's *ius puniendi* and that, as a requirement derived from the principles of legal certainty and legality enshrined in Articles 9.3 and 25.1 of the Constitution, its existence is essential for imposing it. Therefore, even if there is unlawful conduct, when the data controller demonstrates having acted with the diligence that the circumstances of the case require to fulfill the obligations imposed by data protection regulations, given that objective responsibility is prohibited in our sanctioning Administrative Law, the AEPD proceeds to archive the file.

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The principle of culpability is expressly enshrined in Law 40/2015 on the Legal Regime of the Public Sector, as provided in Article 28, under the heading “Responsibility”:

“1. Only individuals and legal entities, as well as, when a law recognizes their capacity to act, groups of affected parties, unions and entities without legal personality, and independent or autonomous assets, that are responsible for acts constituting administrative infractions may be sanctioned.”

Regarding the element of culpability within the framework of the sanctioning procedure, the SAN of 30/05/2015 (Rec. 163/2014) has highlighted the differences that exist between attributing responsibility to an individual and to a legal entity, and connects the “blameworthiness” of a certain conduct to a “legal entity” with the circumstance that it “would have provided or not effective protection to the legal right protected by the norm.” The second Legal Ground of the aforementioned Judgment states:

<> (Emphasis added).

Now, in the analyzed case, not only is the element of culpability present—as indicated, an indispensable condition for demanding sanctioning responsibility—but there is also a very serious lack of diligence on the part of the respondent in fulfilling the obligations imposed by the GDPR, a serious lack of diligence that has a direct consequence on the determination of the amount of the administrative fine deemed appropriate to impose.

In this case, it has been established that the respondent did not exercise the slightest diligence to comply with the principles governing the processing of personal data, particularly the principle of minimization. The entity in question omitted the diligence it was obliged to observe when, in the course of its business activity, it captured images of the claimant's home and collected personal data of his minor daughters (their image) that were in no case necessary for the purpose pursued by its activity and when, subsequently, it disseminated those images on its website. We refer to the SAN of 17/10/2007 (Rec. 63/2006) cited in Legal Ground III, point 3, above.

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- Circumstance of Article 83.2.k) GDPR:

In relation to Article 76.2.b) LOPDGDD: The evident connection between the business activity of the respondent and the processing of personal data. In relation to Article 76.2.f) of the LOPDGDD: “The impact on the rights of minors.”

No mitigating circumstances are observed.

In accordance with the criteria of Articles 83.1 and 83.2 of the GDPR, at this stage of the procedure, and without prejudice to the outcome of the investigation, it is estimated that the alleged infringement of Article 5.1.c) of the GDPR attributed to the REAL ESTATE COMPANY could be sanctioned with the imposition of an administrative fine in the amount of €10,000 (ten thousand euros).

Furthermore, other corrective measures may be adopted, such as ordering the deletion of the personal data of the claimant's daughters, in accordance with Article 17 of the GDPR, a measure provided for in paragraph g) of Article 58.2 of the GDPR. It is reminded in this regard that Article 17.1 of the GDPR states that “The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed; [...]”

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ODRIA COSTAS INTERNACIONAL, S.L., with NIF B30905756, for the alleged infringement of Article 5.1.c) of the GDPR classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its attached documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT, for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sanction that may correspond would be €10,000 (ten thousand euros).

FIFTH: TO NOTIFY this agreement to ODRIA COSTAS INTERNACIONAL, S.L., with NIF B30905756, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its

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The written statement of allegations must provide your NIF and the procedure number indicated in the heading of this document.

If you do not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €8,000 (eight thousand euros), resolving the procedure

with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €8,000 (eight thousand euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of any corrective measures that may correspond, if applicable.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions apply, the amount of the sanction would be set at €6,000 (six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€8,000 or €6,000), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es) and the Electronic Notification Service (notificaciones.060.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-110422

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 19, 2023, the respondent has proceeded to pay the sanction in the amount of €6,000 making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures

to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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The control authority and according to the provisions established in Articles 47, 48.1, 64.2, and 68.1 of the Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202207881, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER ODRIA COSTAS INTERNACIONAL, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

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THIRD: TO NOTIFY this resolution to ODRIA COSTAS INTERNACIONAL, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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